



DEFENSE THREAT REDUCTION AGENCY
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20 December 2024

EXCEPTION TO FAIR OPPORTUNITY JUSTIFICATION

1. Nature and/or Description of the Action

The Defense Threat Reduction Agency (DTRA) contracting activity proposes to procure, without requesting proposals from all 6 contract holders under the Cooperative Threat Reduction Integrating Contract (CTRIC) III Indefinite Delivery/Indefinite Quantity (IDIQ) contract, an effort under the Task Order (TO) HDTRA1-19-F-0050, entitled, [REDACTED] Counter Weapons of Mass Destruction (CMWD) Readiness. PAE National Security Solutions, LLC/Amentum Services, Inc. will be the only contractor solicited to provide the required technical effort.

2. Description of the Supplies/Services Required

The nature of the required action is an extension of services to TO HDTRA1-19-F-0050. This action will extend the TO for 12 months.

In February 2014, the [REDACTED] Counter-Proliferation Working Group (predecessor to the current [REDACTED] CWMD Committee) proposed developing a [REDACTED] [REDACTED] In December 2017, the [REDACTED] co-chairs to the [REDACTED] CWMD Committee signed the Terms of Reference establishing both countries' intent to engage in NCT cooperation and outlining the broad scope of such cooperation. In April 2018, the Secretary of Defense approved, with Secretary of State concurrence, authority to conduct CTR activities in/with the [REDACTED]. In accordance with this guidance and direction, TO HDTRA1-19-F-0050 was awarded on 02 April 2019 to PAE National Security Solutions LLC, subsequently acquired by Amentum Services, Inc.

TO HDTRA1-19-F-0050 provides scope for a broad range of activities including training, capability assessment/development, and exercise support services related to the execution of the CTR Program mission in the [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] This extension will provide service continuity [REDACTED]

[REDACTED] This extension will provide continuation of critical services to support and continued support and enhancement for critical CWMD efforts, vital to safety and security in the [REDACTED]. This extension will also allow the contracting activity and CTR Program to conduct the acquisition to competitively award a follow-on TO under the CTRIC IV IDIQ contract and allow proper contract transition before [REDACTED] commences in Spring of 2026. The CTRIC IV IDIQ contract is not expected to be available until Summer 2025.

The period of performance for this extension will begin upon award of the modification and end on 31 March 2026. The current value of the TO inclusive of all option periods is [REDACTED]. The cost of this extension is approximately [REDACTED].

3. Exception to Fair Opportunity

This exception to fair opportunity will be issued pursuant to the Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(C); “the order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.”

4. Justification Rationale

All potential awardees were given a fair opportunity to be considered for the original task order.

TO HDTRA1-19-F-0050 was competed among all six CTRIC III IDIQ contract holders, providing a fair opportunity at time of award. This extension of 12 months does not add any additional work components. This extension would allow for the continuation and completion of all existing work already within the PWS which was unable to be completed in the original PoP. PAE/Amentum was deemed technically competent for their subject matter expertise and to perform the services, and at the best value, for this TO. Therefore, it is reasonable to conclude that PAE/Amentum is the most logical and technically qualified firm to continue performance in completing the CTR Program’s [REDACTED] Readiness Project.

PAE/Amentum is the most qualified contractor to perform the TO requirements

PAE/Amentum remains the best value to the government. The introduction of a new contractor to complete the current scope of work presents unnecessary implementation risk to the projects.

Furthermore, the current execution on this TO is satisfactory. Changing the approach for execution at this stage would lead to inconsistent reporting, duplication of costs, risk of completing the tasks as necessary due to delays associated with a downselect. A new contractor will be unable to effectively leverage the existing working relationships and familiarity that PAE/Amentum has established with [REDACTED]

[REDACTED] and other key stakeholders in the [REDACTED]. These working relationships are key to obtaining necessary coordination information to posture CTR for assisting [REDACTED] stakeholders to understand the information in the GARs. Based on project team historical data it would take a new performer approximately five months to develop these extensive and deep stakeholder relationships, establish trust, and gain a sufficient understanding of the GARs to effectively coordinate, educate, and collaborate with stakeholders to assist CTR in training solution requirement development. PAE/Amentum and its team of subcontractors have an intricate understanding of the primary [REDACTED] stakeholders and in-country logistical support systems, which would require a large amount of additional work to learn and establish should a new performer need to be brought on.

New Status of Forces Agreement (SOFA) paperwork would need to be created for each of the new performer's employees. This process currently has an 8-10 week lead time. Access to unclassified and classified systems and building accesses both CONUS and OCONUS would be required for new performer employees. This process could take up to 3-4 months, further delaying their ability to begin work and mitigate project delays and loss of relationships with stakeholders. Having operated in-country for the last five years, the PAE/Amentum team is acutely aware of the risks associated with this project from political, military, cultural, economic, and project management perspectives. A change in contractor would result in significant schedule delays, increased costs, and a potential loss of productivity due to required transfers of historical project knowledge. [REDACTED]

PAE/Amentum is best postured to continue stakeholder management, coordination, and education to ensure continued advocacy for the projects, knowledge of current risk areas, and in-country vendor information. PAE/Amentum also has insight into the intricacies of the evolution of the three GARs acquired over the course of 1.5 years. This insight has been critical to the writing of the reports. This requisite knowledge entails what research has and has not been accomplished during the writing of the three reports. This process would logically have to be repeated by a new performer if they were to assume the role of finishing the GARs.

Economy and efficiency of this action versus a new competition

No appreciable cost or schedule advantage is expected by recompeting the current TO. Re-competition at this stage will present the most significant and probable negative impact to the project's schedule. PAE/Amentum is already mobilized in-country, can leverage program management oversight during the already awarded training schedule, and has intimate

knowledge of the project. PAE/Amentum is well-positioned to continue executing the requirements of the TO upon execution of this modification.

Cost impacts to the project would also be expected as the new contractor would need to duplicate portions of work that have already been performed by PAE/Amentum outside of the GAR writing process. Further redundant activities include mobilizing new in-country support staff, re-performing stakeholder meetings/introductions, re-conducting some activities and workshops pertinent to the three studies to gain a level of understanding needed to complete the task. [REDACTED] project specifically would require an entire new training team be brought up to speed for the [REDACTED] training effort. Additionally, performers working in the [REDACTED] require Status of Forces Agreement (SOFA) designation. The process to obtain SOFA designation can require as much as three months, and if the current performer is not extended would require out-processing time three months ahead of current contract expiration-further widening a potential stop work gap until the CTRIC IV IDIQ is brought online.

A 12-month extension to TO HDTRA1-19-F-0050 was granted on 12 December 2023 to allow the completion of a [REDACTED] training cycle and a validation exercise for the [REDACTED], and completion of tasks/deliverables associated with three GARs, because of delays caused by the COVID-19 pandemic. The extension was approved with the intent to re-compete a follow-on effort in the [REDACTED] under the CTRIC IV IDIQ. The award of the CTRIC IV IDIQ is delayed until Summer 2025. As a result of this delay, an extension is required to provide continuity of critical services until the CTRIC IV IDIQ is in place to competitively award a follow-on TO.

5. Market Research

Market research was conducted prior to original TO award and again in October of 2023. Market research included the examination of historical DTRA and DoD data, a review of whole-of-government commercial databases, a review of internet resources, and reliance on personal knowledge of procuring supplies/services of this type in support of all CTR Security and Elimination Department Programs in the [REDACTED]. CTR looked for performers that had the ability to provide a wide array of large, complex services, and determined that the private sector was better equipped to provide these services than universities, non-profits, or interagency performers.

Following market research, CTR determined the CTRIC IDIQ contract was the most appropriate vehicle to fulfill the requirements for development of the [REDACTED] covered by the three GARs called for in the PWS. The three GARs aim to make recommendations for bolstering the Command's CWMD response capability during crisis or contingency in the [REDACTED]. The CTRIC IDIQ contract vehicle was deemed fully qualified to perform the stated requirements in the [REDACTED].

6. Other Supporting Facts

The current heightened WMD threat, as evidenced by ongoing open-source reporting on the [REDACTED] necessitates the current (and only) CTR work in [REDACTED] to continue unencumbered. Disruption of CTR efforts in [REDACTED] will result in an unacceptable lapse in [REDACTED] response capabilities and increases risk to U.S. Forces. The U.S. Government will

face serious operational, financial, and reputational injury related to CTR's ongoing efforts with the [REDACTED]. TO HDTRA1-19-F-0050 directly supports 2024 Office of the Secretary of Defense (OSD) Threat Reduction and Arms Control (TRAC) Policy Priority #1, and Draft 2025 OSD TRAC Policy priority #1 as well as contributes directly to [REDACTED] Operational Plan (OPLAN) readiness. This work is the ONLY tangible WMD-related training partnership between the [REDACTED] and serves as a critical pillar between OSD and [REDACTED] for continuing the alliance between the two governments. A gap in service, or interim period of no CTR support, presents an unacceptable risk to ensuring the [REDACTED]

Furthermore, the TO recently completed and delivered three GARs to the [REDACTED] in the summer of 2024, [REDACTED]. Following the July 2024 [REDACTED], CTR agreed to pursue a training program to rectify these concerns in a [REDACTED] OSD brokered training agreement. A lapse in service presents extreme risk to the substantial time and financial investment the U.S. Government has placed in this effort; [REDACTED] respectively. Without an extension and continuous stakeholder engagement, the U.S. Government will not have a contract vehicle to ensure the results of the GARs remain valid and the CTR program is not able to carry out its commitment to the [REDACTED]. Furthermore, a lapse in service places the U.S. Government at reputational risk by potentially not adhering to bilateral commitments established with the [REDACTED] Government at the MND and OSD level. This can result in significant reputational harm to the U.S. Government and its desire to project an image of staunch support for its [REDACTED] during a period of heightened geopolitical tensions.

7. Subsequent Actions

This extension maintains continuity of services, while increasing competition for the follow-on Task Order to be issued under the CTRIC IV IDIQ. CTR will be able to more clearly define requirements based off the completion of [REDACTED] and completion/acceptance of the three GARs. The completion of three accurate gap assessments provides potential competing performers the absolute best mechanism for receiving ground-truth data from which to build their proposals for follow on work.

Technical Certification

I certify that the data and information forming the basis for this determination are accurate and complete to the best of my knowledge and belief.

[REDACTED]
Program Manager/Project Officer

Date

Contracting Officer Certification and Determination

I certify that this justification is accurate and complete to the best of my knowledge and belief. Additionally, I determine that the order represents the best value consistent with Federal Acquisition Regulations.

[Redacted Signature]

Contracting Officer

Date

General Counsel Coordination

This justification is legally sufficient.

[Redacted Signature]

Attorney

Date

Approval

Based on the above justification, I hereby approve accomplishment of this acquisition by means of limited sources.

[Redacted Signature]

Competition Advocate

Date